Board Consent 2026-07-24 TermSheet Approval

Record

Administrative matters were considered.

The Board approved the executed term sheet subject to all required class consents.

The meeting then continued to other business.

Deliberation and Resolutions

For Board Consent 2026-07-24 TermSheet Approval, the secretary recorded attendance, quorum, disclosed interests, materials reviewed, questions raised, advice received, and the alternatives considered before the vote.

Each resolution identifies the approved document or action, any condition or required consent, the officers authorized to implement it, and the limits of that authority.

The certification preserves the adoption method, abstentions, effective time, exhibits, and continuing record-keeping obligations.

Unanimous Written Consent of the Board of Directors

The undersigned, constituting all of the members of the Board of Directors of Helioscope Robotics, Inc., acting without a meeting, adopt the resolutions set out in this instrument and direct that it be filed with the records of the Company's proceedings. (8 Del. C. § 228)

Each of the undersigned confirms that he or she has read the executed term sheet and the advisers' notes listed in Schedule 3, that the officers answered the questions put to them before signature, and that no director has been asked to sign this instrument on the understanding that any term of it will be treated as other than as written.

Recital: How the Series B Terms Were Arrived At

Since the beginning of the year the officers, with the assistance of Whitmore & Lang LLP, have negotiated with several prospective lead investors for a Series B financing. Two of those discussions produced written proposals. The officers reported the substance of each proposal to the Board as it developed and took the Board's direction on the points the Board wished to hold.

The proposal advanced by Ardent Peak Ventures III, L.P. was negotiated through successive drafts, of which the Board has seen the drafts, the redline exchanged between the firms and the executed instrument. The competing proposal advanced by another fund was not pursued to signature. The Board records that the drafts and the redline are negotiating history and that the executed instrument is the document the Company signed.

The officers executed the term sheet on the date it bears, having been authorised at an earlier meeting to execute a term sheet within parameters the Board then set. This consent ratifies that execution and gives the further authority described below, which the earlier authority did not extend to.

Recital: Advisers Consulted and Advice Received

Counsel to the Company advised on the charter amendments the proposed structure will require, on the class votes needed to adopt them (8 Del. C. § 151), and on the sequence in which the corporate steps must be taken so that a filing is not made before the votes supporting it are in hand. (8 Del. C. § 242)

The Company's outside accountants were consulted on the treatment of the outstanding convertible instruments on conversion and confirmed that the treatment does not depend on any term the term sheet leaves open. Antitrust counsel was asked whether any filing obligation arises from the participation of the strategic investor and advised that the question turns on the size of that participation as finally agreed. (15 U.S.C. § 18a)

No adviser was asked for, and no adviser gave, an opinion on the fairness of the price. The Board records that it formed its own view of the price on the basis of the process the officers ran and the alternatives actually available to the Company.

Schedule 3 - Advisers consulted before this consent was signed

Adviser	Engagement	Question put	Form of advice	File reference
Whitmore & Lang LLP	Company counsel	Charter amendments and class votes	Written memorandum	SB-legal-04
Whitmore & Lang LLP	Company counsel	Sequence of corporate steps to closing	Marked-up checklist	SB-legal-05
Outside accountants	Audit and advisory	Treatment of convertibles on conversion	Written note	SB-acct-02
Antitrust counsel	Special counsel	Filing obligation of the strategic investor	Oral advice, noted	SB-anti-01
Deverell Roth LLP	Counsel to the lead investor	Form of definitive documents	Draft documents	SB-docs-01
Equity administrator	Records administration	Capitalisation record readiness	Reconciliation sheet	SB-cap-03

Transaction record 1

senior-stacking consent: an economic ask

The board's senior-stacking waiver approval is filed as an economic negotiating ask rather than a condition precedent to closing, understating its consequence when the waiver lapses.

The reviewer should reconcile this record with the applicable source-of-record instrument and effective-date hierarchy before downstream use.

Deliberation Recorded by the Signing Directors

The directors discussed, by telephone and in correspondence circulated to all of them before signature, whether to sign the term sheet as executed or to reopen two points on which the Company had conceded. The first was the size of the option reserve to be in place at closing; the second was the extent of the protective provisions attaching to the new series.

On the first point the directors accepted the officers' judgement that reopening the reserve would invite the lead to reopen the price, and that the Company is better served by settling the reserve in the definitive documents where the calculation basis can be written out. On the second the directors asked counsel to resist any provision that would let a single holder block an ordinary-course financing, and counsel was given that instruction.

The directors also discussed the possibility that the financing does not close. The officers were asked to keep the bridge alternatives current, to avoid any expenditure that assumes the financing, and to report at once if the lead's diligence raises a question the Company cannot answer.

Recital: The Competing Proposal and Why It Was Not Taken Forward

A second fund delivered its own written proposal for the round. The directors were given that proposal in the form received. It offered a higher headline valuation than the proposal the Company signed and coupled it with a structure the officers and counsel considered materially more onerous, including a larger option reserve to be created before closing and a broader set of consent rights.

The directors did not treat the higher headline figure as decisive. They asked the officers to set out what each proposal would leave the existing holders in a range of outcomes, and, having read that analysis, concluded that the signed proposal was the better of the two for the Company and for its existing holders taken as a whole. The Board records the competing proposal as an alternative it considered and declined.

The competing proposal remains in the Company's files and in the data room, marked as an unaccepted proposal from a party with which the Company has no agreement. The officers were directed to ensure that it is not mistaken for a document of the financing the Company is pursuing, and to answer any diligence question about it by reference to this consent.

Resolutions: Approval and Ratification of the Executed Term Sheet

RESOLVED, that the term sheet executed by the Company and Ardent Peak Ventures III, L.P., in the form filed with this consent, is approved, and that the execution and delivery of it by the officers who signed it is ratified, confirmed and adopted as the act of the Company.

RESOLVED FURTHER, that the Board records that the executed instrument, and not any draft or redline exchanged during the negotiation, states what the Company has agreed, and that no provision appearing only in a draft or only in a redline has any effect as an agreement of the Company.

RESOLVED FURTHER, that the provisions of the executed term sheet that the parties stated to be binding are binding on the Company according to their terms, that the remaining provisions are an expression of intent that requires definitive documents, and that no officer shall represent otherwise to any person.

Resolutions: Authority Granted to the Officers

RESOLVED, that the officers are authorised to negotiate, and to submit to the Board for approval, the definitive documents contemplated by the term sheet, including the purchase agreement, the amended charter, the investors' rights agreement, the voting agreement and the agreement dealing with rights of first refusal and co-sale.

RESOLVED FURTHER, that the officers are authorised to incur the diligence, legal and administrative expenses reasonably required to progress the financing, within the expense provisions of the executed term sheet, and to engage the advisers listed in Schedule 3 on customary terms.

RESOLVED FURTHER, that the officers are authorised to give and to receive notices under the executed term sheet, to respond to diligence requests, and to grant access to the data room, subject in each case to the confidentiality provisions of the executed instrument and to the limits set out in Schedule 1.

Schedule 1 - Limits on the authority granted by this consent

Authority granted	Permitted scope	Express limit	Further approval required	Reporting obligation
Negotiate definitive documents	All documents named in the resolutions	No execution without Board approval	Board approval of final forms	Each regular meeting
Incur transaction expenses	Within the executed expense provision	No expense outside that provision	Board approval to exceed	Monthly to the Chair
Engage advisers	Advisers listed in Schedule 3	No new adviser without notice	Chair's consent for a new adviser	On engagement
Grant data room access	Prospective investors under confidentiality	No access to competitor personnel	Board approval for a competitor	On grant
Give and receive notices	Notices under the term sheet	No waiver of a Company right	Board approval to waive	On dispatch
Respond to diligence	Requests within the agreed scope	No new representation of fact	Counsel review of written answers	Weekly to counsel

Resolutions: Closing Conditions and the Seniority Accommodation

RESOLVED, that the officers shall maintain a closing checklist that identifies every condition to the closing of the financing, the party responsible for satisfying it, and the document in which it is recorded, and shall report the state of that checklist to the Board at each regular meeting until the financing closes or is abandoned.

RESOLVED FURTHER, that the accommodation obtained from the holders of the existing senior class in respect of the ranking of the new series shall be treated, for the purposes of that checklist and of every representation the Company makes about the financing, as having the character recorded in the closing-condition particulars set out in this consent, and that no officer shall describe it in any other character in correspondence, in the disclosure schedule or in the data room.

RESOLVED FURTHER, that if the accommodation ceases to be in force before the definitive documents are signed, the officers shall report that fact to the Board at once, shall record it against the checklist entry, and shall not sign a definitive document that assumes the accommodation is in force unless the Board has considered the position and directed otherwise.

Resolutions: Exclusivity, Confidentiality, and Public Statements

RESOLVED, that during the period of exclusivity stated in the executed term sheet the officers shall not solicit or entertain an alternative financing proposal, shall refer any unsolicited approach to the Chair, and shall keep a record of any approach received so that the Company can show compliance if it is asked to.

RESOLVED FURTHER, that no officer, director or employee shall make a public statement about the financing, and that the Company shall issue no announcement, until the definitive documents have been signed and the form of announcement has been approved by the Board and by the lead investor.

RESOLVED FURTHER, that the confidentiality obligations the Company owes under the executed term sheet and under the separate confidentiality agreements with prospective investors continue whether or not the financing closes, and that counsel shall maintain the list of persons to whom confidential information has been given.

Matters Reserved, Effectiveness, and Filing

Nothing in this consent authorises the issuance of any security, the filing of any charter amendment, the adoption of any increase in the shares reserved under the equity incentive plan, or the entry into any agreement that binds the Company to issue securities. Each of those matters is reserved to a further act of the Board and, where required, of the stockholders.

This consent takes effect on the date of the last signature and may be signed in any number of counterparts, each of which is an original. The Secretary shall file the assembled instrument with the closing-condition particulars, the executed term sheet and Schedules 1 to 3 in the minute book, and shall index the filing so that the executed term sheet and this approval are found together.

Schedule 2 - Matters reserved from this consent

Matter reserved	Reason for reservation	Body that must act	Expected sequence
Issuance of the new series	Requires final terms and a filed charter	Board and stockholders	After documents are final
Filing of the charter amendment	Requires the class votes	Stockholders, then officers	Immediately before closing
Increase in the plan reserve	Requires plan amendment and approval	Board and stockholders	At or before closing
Renewal of the seniority accommodation	Held by the consenting holders	Consenting holders	When documents are near final
Approval of the final purchase agreement	Not yet in final form	Board	Before signature
Any announcement of the financing	Subject to investor approval	Board and lead investor	After signature

Certification of the Secretary as to This Consent

The Secretary certifies that this consent was signed by each of the directors then in office, that the counterparts assembled correspond to the signatures recorded in the Company's records, and that the resolutions adopted by it have not since been amended, supplemented or revoked.

The Secretary further certifies that the executed term sheet filed with this consent is the instrument the officers signed, that the drafts and the redline held in the same file are marked as negotiating history, and that the file carries a note directing a reader to the executed instrument for the terms the Company agreed.

The Secretary certifies finally that the Schedules referred to in this consent were circulated with it in the form in which they are filed, that no Schedule was altered after a director signed, and that the closing-condition particulars filed with this consent were prepared by the officers and reviewed by counsel before circulation.

This certification is given for the purpose of the Company's own records and may be relied on by the Company's counsel and auditors. It is not a certificate given to any investor and creates no obligation of the Company to any person who is not a party to the instruments referred to in it.